

Testimony of Thomas L. Brunell, Ph.D.

I am a professor of political science at the University of Texas at Dallas. I earned my Ph.D. in 1997 from the University of California, Irvine, and I specialize in the study of representation, American elections, and redistricting. Today I will offer some opinions and advice to the committee on congressional redistricting and the principle of equal population.

A series of important cases decided by the Supreme Court in the 1960's regularized the redistricting process as they required that each state equalize the population between districts for congressional and state legislative districts after each census. Combined, we refer to these as the one-person, one-vote decisions.

The Constitutional justification used for the congressional decision (*Wesberry v. Sanders*) was that the House represents the people. This differs from the Constitutional justification for the cases involving state legislative elections, which were based on the Equal Protection Clause. Over time, this distinction became important as the courts treated population deviations in congressional and legislative cases differently. As a general rule, the courts have allowed some deviation among districts within a state - usually plus or minus five percent (for a total deviation of ten percent), while nearly any population deviation in congressional districts was frowned upon.

Unless there is some compelling reason for the deviation in a congressional map, any population deviation may subject the map to an adverse decision by the federal judiciary. Pennsylvania is no stranger to this situation - a mere 19 person deviation for congressional districts in 2003 was one of the subjects of a lawsuit that forced the state to adjust the map.

There are some instances in which slight deviations within a state are allowed, usually because the state keeps all of the counties whole. Both Iowa and West Virginia have done this recently. But the deviations were still pretty small even in these two examples.

One change for the 2020 round of redistricting that may or may not play a role is that the Census Bureau changed their method of keeping census data private. They are now using a method called differential privacy - which purposefully adds small errors in the data in order to keep the chances of figuring out individual household or personal data. This means that zeroing out the population isn't really zeroing out the population. However, it never really did - the census data are never perfectly accurate. So I would not worry about this fact and continue to zero out population deviations for congressional districts.

Thus, in my opinion the state is best served to zero out any deviations for the congressional map. While this will almost certainly not inoculate the map from legal challenges, it will, at the very least, take one additional grounds for a lawsuit away.

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